



CHAPTER lxiii.

An Act to confer further powers upon the mayor aldermen and burgesses of the county borough of South Shields in regard to their tramway undertaking to extend their Mill Dam Quay to construct street works and to acquire lands to make better provisions in regard to the electrical undertaking and the local government health and finance of the borough and for other purposes. A.D. 1915.
[29th July 1915.]

WHEREAS the borough of South Shields (in this Act called "the borough") is a municipal and county borough under the management and local government of the mayor aldermen and burgesses of the borough acting by the council (in this Act called "the Corporation"):

And whereas the Corporation are the owners of and work an extensive system of tramways within the borough and it is expedient to empower the Corporation to construct and work the additional tramways described in this Act:

And whereas the Corporation are the owners of a certain quay in the borough called the Mill Dam Quay and it is expedient to empower them to extend the same as in this Act provided:

And whereas it is expedient to empower the Corporation to construct the street improvements and to acquire the lands referred to in this Act:

And whereas it is expedient to make further provision with regard to the electrical undertaking of the Corporation and to the streets and buildings in the borough and to enlarge the powers of the Corporation in relation to the health local

A.D. 1915. government and finance of the borough as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to borrow money and such estimates are as follows :—

For the construction and equipment of the tram-	£
ways by this Act authorised and for the general	
purposes of the undertaking - - - -	16,711
For the construction of the quay work by this Act	
authorised - - - - -	12,708
For the works of street improvement by this	
Act authorised including the purchase of land	
therefor - - - - -	2,651

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference to such plans containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Durham which plans sections and book of reference are in this Act respectively referred to as “the deposited plans sections and book of reference” :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

A.D. 1915.

PRELIMINARY.

1. This Act may be cited as the South Shields Corporation Act 1915. Short title.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Quays.

Part IV.—Street Improvements.

Part V.—Lands and Works.

Part VI.—Electricity.

Part VII.—Streets Buildings and Drains.

Part VIII.—Finance and Miscellaneous.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and sections 3 and 19 and Parts II. and III. of the Tramways Act 1870 so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act. Incorporation of Acts.

4. In this Act unless the subject or context otherwise requires terms to which meanings are assigned by Acts or enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act (except where otherwise expressly provided) the same respective meanings. Interpretation.

“The borough” means the county borough of South Shields;

“The Corporation” means the mayor aldermen and burgesses of the borough acting by the council;

“The Order of 1881” means the South Shields Corporation Tramways Order 1881;

“The Act of 1861” “the Act of 1896” “the Act of 1900” “the Act of 1903” mean respectively the South Shields Improvement Amendment Act 1861 the South Shields Corporation Act 1896 the South Shields Corporation Act 1900 and the South Shields Corporation Act 1903;

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"The town clerk" "the surveyor" "the treasurer" mean respectively the town clerk surveyor and treasurer for the borough and includes any person duly authorised by the Corporation to act temporarily as such officers;

"The borough fund" "the borough rate" "the district fund" and "the general district rate" mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

"The tramways" means the tramways authorised by this Act;

"The tramway undertaking" means the tramway undertaking of the Corporation for the time being authorised including therein all street improvements of which the cost has been or shall be primarily chargeable on tramway revenue and "tramway revenue" means the revenue of the said undertaking;

"The electrical undertaking" means the electrical undertaking of the Corporation for the time being authorised and "electrical revenue" means the revenue of the said undertaking;

"Daily penalty" means a penalty for each day on which an offence is continued after conviction thereof.

PART II.

TRAMWAYS.

Power to
make tram-
ways.

5. Subject to the provisions of this Act the Corporation may make form lay down use work and maintain in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections the tramways (all in the borough and parish of South Shields) hereinafter described together with all proper and convenient rails plates works and conveniences connected therewith:

Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this Act are—

Tramway No. 1 (3 furlongs 3·93 chains in length of which 2 furlongs 8·39 chains is double line and 0 furlong 5·54 chains is single line) commencing at a point on the existing line at the intersection of Ocean Road and King Street with Fowler Street and proceeding in a north-westerly direction along Mile End Road to a point in Mile End Road 0·53 chain north-west of the northern corner of the junction of Mile End Road with Wellington Street: A.D. 1915.

Tramway No. 1 will be laid as a double line except between the following points where it will be laid as a single line:—

From a point 5·54 chains south-east of the terminus of such tramway in Mile End Road at the north-western end of such road to such terminus:

Tramway No. 2 (4 furlongs 1·02 chains in length of which 3 furlongs 9·9 chains is double line and 0 furlong 1·12 chains is single line) commencing at a point on the existing tramway in Dean Road 0·55 chain north-east of the junction of Imeary Street with Dean Road thence proceeding in a southerly and south-easterly direction along Sunderland Road and terminating at the boundary of the municipal borough and parish of South Shields in that road:

Tramway No. 2 will be laid as a double line except between the following points where it will be laid as a single line:—

From a point 1·12 chains north-west of the borough boundary in Sunderland Road to such borough boundary.

6. If the tramways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for making or completing the same or otherwise in relation thereto respectively shall cease except as to so much thereof as shall then be completed. Provided that the Board of Trade may if they see fit allow an extension of time as regards the whole or some of the tramways or some portion of the tramways only subject to such conditions (if any) as they may see fit to impose. Period for completion of tramways.

7. The tramways and the works connected therewith including shelters or waiting rooms shall for all purposes including the demanding taking and recovery of tolls rates Works to form part of tramway undertaking

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tion.

fares and charges form part of the tramway undertaking of the Corporation and the provisions of Part II. of the Act of 1903 and of the enactments incorporated with that Act and any byelaws and regulations made in pursuance thereof so far as such provisions byelaws and regulations are applicable and are not inconsistent with or varied by the provisions of this Act shall extend and apply to the tramways and works including shelters or waiting rooms as if they had been authorised by the said Act and were "tramways" within the meaning of that Act:

Provided that in the exercise of the powers conferred on the Corporation by the said Act with reference to the tramways no posts or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

Shelters or
waiting
rooms.

8. The Corporation may subject to the provisions of this Act erect and maintain shelters or waiting rooms for the accommodation of passengers and may with the consent of the local authority and road authority use for that purpose portions of the public streets or roads:

Provided that no shelter or waiting room shall be erected or maintained in any street or road so as to cause interference with or render less convenient the access to or exit from any station or depôt of the North Eastern Railway Company and except with the consent of that company no shelter or waiting room shall be erected or maintained on any bridge or the approaches thereto belonging to the North Eastern Railway Company Any difference arising between the Corporation and the company under this section shall be determined by an arbitrator to be agreed upon by both parties or failing such agreement to be appointed by the Board of Trade on the application of either party.

Purchase of
lands by
agreement
for tramways
undertaking.

9. The Corporation may purchase take on lease or acquire by agreement and may hold for the purposes of their tramway undertaking any lands not exceeding five acres and they may on such lands erect or construct and hold depôts yards wharves offices buildings sidings works and other conveniences in connection with such undertaking.

Use of tram-
way posts by
Postmaster-
General.

10.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or

public road by the Corporation in connection with the tramways authorised by this Act and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:— A.D. 1915.

- (a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways :
- (b) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as hereinafter provided :
- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as hereinafter provided :

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- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair :
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants :
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided :
- (i) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants :
- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his

option retain the post standard or bracket and pay the Corporation the value of the same Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided. A.D. 1915.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their tramways or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as hereinafter provided.

(3) All differences arising under this section shall be determined in manner provided by sections four and five of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression “the Corporation” includes their lessees;

The expression “telegraph” has the same meaning as in the Telegraph Act 1869; and

Other expressions have the same meanings as in the Telegraph Act 1878.

PART III.

QUAYS.

11. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the following works (that is to say):— Power to extend Mill Dam Quay.

An extension or widening of sixty feet or thereabouts of the existing Mill Dam Quay in the bed of the River Tyne for a length of two hundred and ten feet or thereabouts from the south-western end of the existing quay in a south-westerly direction to the premises of the Middle Docks and Engineering Company Limited.

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Power to Corporation to pull down buildings.

12. The Corporation may maintain the extension or widening of the existing Mill Dam Quay and works by this Act authorised and may alter improve take down and rebuild the buildings erections and works for the time being on the said quay and the lands forming part of the said quay.

Application of provisions of Acts of 1861 and 1896.

13. The provisions contained in the sections of the Acts of 1861 and 1896 the numbers and marginal notes of which are set forth in this section shall so far as applicable extend and apply to and in relation to the works and powers by this Part of this Act authorised as if the same were re-enacted herein:—

Of the Act of 1861—

- Section 17 (Corporation to appoint meters weighers and other officers);
- Section 18 (Powers for the Corporation to dredge bed of the River Tyne);
- Section 19 (Penalty for obstructing river in front of quay);
- Section 20 (Powers of Quay Master not to interfere with jurisdiction of Harbour Master);
- Section 21 (Legal quay to be approved by the Treasury);
- Section 22 (Goods landed at quay to be exempt from one half of import dues);
- Section 23 (Corporation to allow Tyne Improvement Commissioners to inspect books and accounts);
- Section 24 (Powers to demise lands &c. and make regulations with respect to buildings);
- Section 25 (Rates to be taken for vessels using the quay);
- Section 26 (Exemption of vessels in Her Majesty's service &c. from rates);
- Section 27 (Additional rate for vessels using quay beyond eight days);
- Section 28 (Rates for weighing machines cranes &c.);
- Section 29 (Corporation to keep separate accounts):

Of the Act of 1896—

- Section 29 (Power to deviate in construction of quay works);
- Section 30 (For protection of Tyne Improvement Commissioners);

- Section 33 (Power to make subsidiary works); A.D. 1915.
Section 34 (Power to erect additional buildings);
Section 37 (As to provision of fish quays);
Section 38 (Works below high-water mark not to be commenced without consent of Board of Trade);
Section 39 (Survey of works by Board of Trade);
Section 40 (Abatement of work abandoned or decayed).

14. If the works by this Part of this Act authorised are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Part of this Act authorised for making or completing such works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for completion of quay works.

PART IV.

STREET IMPROVEMENTS.

15. Subject to the provisions of this Act the Corporation may in the lines and according to the levels shown on the deposited plans and sections make and maintain within and adjoining the borough the street improvements and works hereinafter described together with all proper works and conveniences connected therewith (that is to say):—

Power to construct street improvements.

Street Work No. 1 A widening of Thrift Street on the east side thereof in the borough commencing at a point 21 feet or thereabouts northward from the junction of Thrift Street with Harding's Bank and terminating at a point 40 feet or thereabouts northward from such junction:

Street Work No. 2 A widening of Green Lane on the south side thereof partly in the borough and partly in the parish of Boldon and rural district of South Shields commencing at a point 15 feet from the junction of Boldon Lane and Green Lane and terminating at a point westward thereof 245 feet distant from the junction aforesaid.

16. The following provisions for the protection of the North Eastern Railway Company (in this section called "the company") shall unless otherwise agreed between the company and the Corporation be observed and have effect with reference

For protection of North Eastern Railway Company.

[Ch. lxiii.] *South Shields Corporation Act, 1915.* [5 & 6 GEO. 5.]

A.D. 1915. to Street Work No. 2 (in this section referred to as "the work")
(that is to say):—

- (1) The Corporation in so far as the work affects the Green Lane Level Crossing of the company shall execute the work under the direction and superintendence of the engineer of the company (if the same be given) and in accordance with detailed plans sections and specifications previously submitted to and reasonably approved by him and the Corporation shall pay and make good to the company all such loss damages and expenses which the company shall sustain or be put to by or during the construction of the work:
- (2) Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the Corporation shall not acquire any estate or interest in any part of the lands railways or other works of the company but the Corporation may make such alterations in the gates signals and other works of the company and in the surface between the rails at the Green Lane Level Crossing as may be necessary to provide a roadway over the same of not more than forty feet in width:
- (3) If the company give to the Corporation notice that they themselves desire to execute so much of the work as will affect the company's railway land and works the company may themselves execute the same and recover the reasonable cost thereof from the Corporation:
- (4) The Corporation shall take all possible precautions in the execution of the work to prevent any interference with the free and uninterrupted and safe use in the ordinary manner of any railway or other work of the company:
- (5) The Corporation shall also bear and on demand pay to the company any additional expenses which the company shall incur or be put to by reason or in consequence of the construction and maintenance of the work:
- (6) If the company at any future date carry their railway over the road or the road over their railway at the level crossing by means of a bridge any additional cost in the construction of such bridge consequent

upon the execution of the work shall to the extent that such additional cost shall be due to the width of the road to be carried over or under the railway exceeding twenty-five feet be borne by the Corporation :

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- (7) If any difference shall arise between the Corporation and the company under the provisions of this section such difference shall be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such reference.

17. The following provisions for the protection of Henry Seymour Allen Edward Lee Rowcliffe and the Right Honourable Valentine Frederick Baron Cloncurry the trustees of the will of the late Elizabeth William Countess of Harrington and their sequels in estate and assigns (all of whom are hereinafter in this section referred to as "the owners") shall unless otherwise agreed in writing between the owners and the Corporation apply and have effect (that is to say):—

For protection of Lady Harrington's trustees.

- (1) In the construction of Street Work No. 2 by this Act authorised the Corporation shall not deviate from the line of improvement shown on the deposited plans where such line abuts upon the land of the owners and shall not under the powers of this Act purchase any part of the lands numbered 3 and 8 on the said plans southward of such line :
- (2) The owners shall convey to the Corporation for a nominal consideration which the owners are hereby authorised to do and subject to the payment of all reasonable and proper costs charges and expenses the fee simple free from incumbrances but subject to the tenancies affecting the same of such part of their said lands numbered 3 and 8 as may be necessary for the construction of the said street works and the Corporation shall reserve to the owners the frontage to the widened roadway on its southern side and shall fence off from such roadway the remaining lands of the owners with a suitable and sufficient fence with such gates not exceeding two as the owners may require

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to afford access to such roadway which fence when erected shall be and remain the property of the owners.

PART V.

LANDS AND WORKS.

Power to
purchase
lands.

18. The Corporation may enter upon take and use all or any part of the lands shown on the deposited plans and described in the deposited book of reference (that is to say):—

- (1) For the purposes of the quay works by this Act authorised the lands shown on the deposited plan in connection therewith and which they may require for the purposes thereof:
- (2) For the purpose of the street improvements and works by this Act authorised the lands shown on the deposited plans in connection therewith and which they may require for the purposes thereof respectively.

Incorporation of
certain provisions of
Acts of 1896
1900 and
1903.

19. The provisions contained in the sections of the Acts of 1896 1900 and 1903 respectively the numbers and marginal notes of which are set forth in this section shall so far as applicable extend and apply to and in relation to the like matters as if they were re-enacted in this Act:—

Of the Act of 1896—

- Section 42 (Correction of errors &c. in deposited plans and book of reference);
- Section 43 (Period for compulsory purchase of lands);
- Section 47 (Temporary stoppage of streets);
- Section 49 (Power to acquire additional lands by agreement);
- Section 50 (Power to take easements &c. by agreement);
- Section 51 (Corporation may use their own lands for purposes of Act);
- Section 52 (Power to retain sell &c. lands);
- Section 54 (As to consent of Local Government Board to sale &c. of lands):

Of the Act of 1900—

- Section 7 (Deviation from line and levels);
- Section 8 (Power to make subsidiary works);

Section 9 (Power to sell materials);

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Section 13 (For protection of Sunderland and South Shields Water Company);

Section 16 (Compensation in case of recently altered buildings) except that the date eighteenth day of November one thousand nine hundred and fourteen shall be read in lieu of the date twelfth day of January one thousand eight hundred and ninety-nine:

Of the Act of 1903—

Section 36 (For protection of South Shields Gas Company in respect of street works);

Section 39 (Power to make general works).

20. Notwithstanding anything contained in section 47 of the Act of 1896 the Corporation shall at all times during the execution of any such works maintain a reasonably sufficient access both for vehicular and pedestrian traffic to the stations and depôts of the North Eastern Railway Company.

For further protection of North Eastern Railway Company.

21. Notwithstanding anything in this Act contained the Corporation shall not under the provisions of this Act take any land or property of the Middle Docks and Engineering Company Limited (in this section referred to as "the company") except with the consent of the company under their common seal but subject thereto they may enter upon use and interfere with the property of the company so far as the same is within the limits of deviation shown on the deposited plans to such extent and for such time respectively as may be reasonably required in order to execute the works by Part III. of this Act authorised and the Corporation shall restore the property of the company as far as possible to its former condition and make good all damage which may be occasioned to the land and works of the company by the execution of the said works. If any difference shall arise between the Corporation and the company or their respective engineers with respect to any matter arising under this section the matter in difference shall unless otherwise agreed be referred to and settled by an arbitrator to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers.

For protection of Middle Docks and Engineering Company Limited.

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PART VI.

ELECTRICITY.

Electrical
fittings.

22.—(1) The Corporation may subject to the provisions of this section sell let for hire and fix repair and remove but shall not manufacture lamps electric lines fuses switches lamp holders motors and other electrical fittings for lighting motive or other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may make such charges and subject to such terms and conditions as may be agreed upon.

(2) The Corporation shall not themselves execute the wiring of private property except between the main of the Corporation and the consumer's meter but they may enter into contracts for the execution of any of the powers of this section including the wiring of private property provided that the contractor acts independently of the Corporation in the execution of the contract The Corporation shall not sell any such electrical fittings except through a contractor carrying on his business independently of the Corporation.

(3) Any electrical fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or liable to be taken in execution under process of law or proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

(4) Provided as follows:—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet the sum properly chargeable for the costs and expenses incurred by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(b) The sums properly chargeable and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the

published accounts of the electricity undertaking of the Corporation for that year: A.D. 1915.

- (c) Every sum charged by the Corporation to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Corporation to the consumer.

23.—(1) Any person who shall hinder an officer appointed by the Corporation from entering any premises in pursuance of section 24 of the Electric Lighting Act 1882 or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. Entry upon premises to inspect meter or remove fittings.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

24. The Corporation may on the application of the owner or occupier of any premises within the area of supply abutting on or erected or being erected in any street laid out or made but not dedicated to public use supply such premises with electrical energy and may lay down take up alter relay repair remove and renew in across along or out of such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the South Shields Electric Lighting Order 1891 and the Electric Lighting Acts 1882 to 1909 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section: Power to lay electric mains in streets not dedicated to public use.

Provided that nothing in this section contained shall apply to any street or road belonging to and forming the approach to any station or depôt of the North Eastern Railway Company nor shall the Corporation in carrying out the works authorised by this section obstruct or interfere with the convenient access to any such street or road.

25. In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then Period of error in defective meters.

A.D. 1915. last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

Power to construct electrical sub-stations under streets.

26. The Corporation may subject to the provisions of the Electric Lighting Acts 1882 to 1909 and the provisions of the South Shields Electric Lighting Order 1891 construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use sub-stations transforming stations and other works in connection with the electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient:

Provided that the Corporation shall not under the powers of this section construct any work which shall so interfere with the access to any passenger or goods station of the North Eastern Railway Company as to obstruct the free ingress and egress of traffic into and from any such station and if any difference arise between the Corporation and such company as to whether such access will be interfered with the question shall be referred to the arbitration of a single arbitrator to be appointed in default of agreement by the Board of Trade.

As to expenses and receipts.

27.—(1) Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act relating to the supply of electricity and for which no other provision is made by this Act shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses.

(2) Any moneys received by the Corporation under the said first-named provisions shall be applied in manner provided by section 52 of the South Shields Electric Lighting Order 1891.

PART VII.

STREETS BUILDINGS AND DRAINS.

Widening of road when only one side is built upon.

28. When a road or lane within the borough is about to become a new street within the meaning of the Public Health

Act 1875 but land on only one side of such street is about to be built on the Corporation may instead of requiring the owner of such land to widen such road or lane to a width prescribed by the byelaws in force within the borough require such owner to widen such road or lane so as to give a width not less than one half of such width prescribed as aforesaid from the old centre line of such road or lane to the boundary thereof adjoining such land. Provided that if and when the land on the opposite side of such road or lane shall be in course of being built on or prior to the Corporation approving plans for the erection of buildings upon the land on such opposite side the owner of such land shall complete the widening of such road or lane so as to give the complete width prescribed as aforesaid.

A.D. 1915.

29. The Corporation may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine.

Provision of street orderly bins by Corporation.

30. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section.

Area of habitable rooms.

31. The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that (except as hereinafter provided) this section shall not authorise the Corporation to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition. Provided that the Corporation may in any case they think fit require the provision of a dustbin in lieu of any ashpit in use at the passing of this Act but in such case they shall except where the medical officer or the inspector of nuisances shall have certified

Power to require owner to provide regulation dustbins.

A.D. 1915. that owing to wilful neglect on the part of the owner or occupier after due notice to keep the same in proper repair any such ashpit is in such a state as to create a nuisance or be injurious to health bear and pay such sum towards the expense of providing such dustbin (being not less than one half thereof) as they may consider just and proper according to the circumstances and the remainder of such expenses shall be borne by the owner or occupier.

Combined drainage for two or more houses.

32. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Power to order houses to be drained by a combined drain.

33.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners summarily as a civil debt.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation except with the consent of the owner or owners of the said house.

Saving for railway companies.

34. Nothing in this Part of this Act or in any byelaw made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway under any Act of Parliament or to any street so belonging and used as aforesaid.

PART VIII.

A.D. 1915.

FINANCE AND MISCELLANEOUS.

35.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table:—

Power to borrow.

1. Purpose.	2. Amount.	3. Period for repayment.
	£	
(a) For the construction of the tramways by this Act authorised.	15,392	Thirty years from the date of borrowing.
(b) For the equipment of tramways and for the general purposes of the tramway undertaking.	1,319	Twenty years from the date of borrowing.
(c) For the construction of works authorised by "Part III.—Quays" of this Act.	12,708	Forty years from the date of borrowing.
(d) For the works of street improvement by this Act authorised including the purchase of lands therefor.	2,651	Forty years from the date of borrowing.
(e) For payment of costs charges and expenses of this Act as hereinafter provided.	A sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for the purposes of the tramway undertaking.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board of Trade.

(3) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act except the purposes mentioned in subsection (2) of this section.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Local Government Board.

(4) Money borrowed under this section shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

36. In order to secure the repayment of the moneys borrowed under the provisions of this Act and the payment of the interest thereon the several revenues of the Corporation are

Security for borrowed moneys.

A.D. 1915. hereby made specially liable and such moneys are hereby primarily chargeable accordingly (that is to say):—

As regards moneys borrowed for the purposes (a) and (b) hereinbefore mentioned the revenue of the tramway undertaking and the borough fund and borough rate:

As regards moneys borrowed for the purposes (c) and (d) hereinbefore mentioned the district fund and general district rate:

As regards moneys borrowed for the purpose (e) hereinbefore mentioned the revenue of the tramway undertaking the borough fund and borough rate and the district fund and general district rate in such proportions as the Corporation may determine:

As regards moneys borrowed with the consent of the Board of Trade or of the Local Government Board the revenue of the tramway undertaking and the borough fund and borough rate and the district fund and general district rate as shall be prescribed in the consent of such Board.

Moneys borrowed under this Act not to be restricted by moneys borrowed under other powers.

37. In calculating the sum which the Corporation may borrow under any other enactments any sums which they may borrow for the purposes of this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing under the powers of this Act shall not be restrained by the provisions of the Municipal Corporations Acts or of the Public Health Acts or of the Local Government Act 1888.

Restriction as to raising money during war.

38. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act raise or borrow any money other than money required to pay the costs charges and expenses of this Act as hereinafter defined during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Application of provisions of Acts of 1896 1900 and 1903.

39. The provisions contained in the following sections of the Acts of 1896 1900 and 1903 shall (with the necessary modifications and subject to the provisions of this Act) extend and apply to the execution of the provisions of this Act as if they were re-enacted in this Act (that is to say):—

Act of 1896—

- Section 197 (Authentication and service of notices &c.);
- Section 202 (Compensation &c. how to be determined);
- Section 203 (Compensation may be in land &c.);
- Section 206 (Powers of Act cumulative);
- Section 207 (Audit of accounts);

Section 208 (Inquiries by and expenses of Local Government Board): A.D. 1915.

Act of 1900—

Section 42 (Protection of lender from inquiry);

Section 14 (Information and return to Board):

Act of 1903---

Section 63 (Qualification of judge or justice).

40. Save as otherwise by this Act expressly provided all offences against this Act or the Act of 1861 and all penalties forfeitures costs and expenses imposed or recoverable under the said Acts or any of them or the Acts incorporated therewith or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

41. Section 15 (Recovery of penalties and damages) of the Act of 1861 and section 36 (Incorporation of sections of Act of 1861 relating to existing Mill Dam Quay) of the Act of 1896 so far as it extends and applies the provisions of such section to the Act of 1896 are hereby repealed. Repeal of section 15 of Act of 1861.

42. Section 49 (Application of tramway revenue) of the Act of 1903 shall be read and have effect as if the words "tramway undertaking" had been substituted therein for each of the words "tramway" or "tramways." Amendment of section 49 of Act of 1903.

43. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

44. All the costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or the district fund and general district rate or out of moneys to be borrowed by the Corporation under the provisions of this Act. Costs of Act.

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